

	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1400-FITAP-SNAP-STEP SNAP Work Requirements
	Document No./Name	B-1440-SNAP Determining Good Cause
	Effective Date	February 1, 2021

I. STATEMENT OF POLICY

Good cause must be determined by the DCFS worker.

B-1441-SNAP RESERVED

B-1442-SNAP - PO WORKER DETERMINED GOOD CAUSE

The worker determines good cause for failure to comply with work registration requirements.

Failure to comply with work registration requirements may include:

- Refusal to Accept an Offer of Employment,
- Refusal to Provide Sufficient Information to Determine Employment Status or Job Availability,
- Voluntarily Quitting a Job,
- Voluntarily Reducing Work Effort,* and **
- Failure to Register for Work with Louisiana Workforce Commission (LWC) by having an active HiRE Account,

Good cause exists when circumstances beyond the client's control prevent compliance with work registration requirements.

Good cause may include but is not limited to:

- Personal illness,
- Illness of another household member requiring the presence of the member,
- A household emergency,
- The unavailability of public or private transportation,
- The lack of adequate child care for children who have reached age 6 but are under age 12,

- The lack of a valid SSN, because it is required for registering for work with LWC,

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1400-FITAP-SNAP-STEP SNAP Work Requirements
	Document No./Name	B-1440-SNAP Determining Good Cause
	Effective Date	February 1, 2021

- Problems caused by inability of the client to speak or write English,
- Remoteness – see [A-100-SNAP](#),
- Work demands or conditions that render continued employment unreasonable, such as working without being paid on schedule,
- Resignations which are recognized by the employer as retirement,
- Leaving one job to take another that later, because of circumstances beyond the control of the individual, does not materialize or results in employment of less than 30 hours a week or weekly earnings of less than the federal minimum multiplied by 30 hours,
- Leaving a job in which workers frequently move from one employer to another such as migrant farm labor or construction work. Circumstances exist when households apply for benefits between jobs, particularly in cases where work may not yet be available at the new job site. Even though employment at the new site has not actually begun, the quitting of the previous employment shall be considered to be with good cause if it is part of the pattern of that type of employment,
- Acceptance by the individual of other employment or enrollment of at least half-time in any recognized school, training program, or institution of higher education that requires the individual to leave present employment,
- Discrimination by an employer based on age, sex, race, color, handicap, religious beliefs, national origin, political beliefs, sexual orientation, or gender identity,
- Employment which becomes unsuitable after the acceptance of employment. Unsuitability may include:
 - The wage offered is less than:
 - The applicable federal minimum wage, or
 - 80% of the federal minimum wage if the federal minimum wage is not applicable.
 - Wages are on a piece-rate basis and the average hourly yield the employee expects to earn is less than the applicable hourly wage specified in the bullet listed above.
 - As a condition of employment or continuing employment, the individual must join, resign from, or agree not to join a legitimate labor organization.
 - The work offered is at a place subject to a strike or lockout at the time of the offer, unless:

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1400-FITAP-SNAP-STEP SNAP Work Requirements
	Document No./Name	B-1440-SNAP Determining Good Cause
	Effective Date	February 1, 2021

- The strike has been forbidden under Section 208 of the Labor-Management Relations Act, or
- An injunction has been issued under Section 10 of the Railway Labor Act.
- The degree of risk to health and safety is unreasonable.
- The individual is verified to be physically or mentally unfit to do the job.
- The distance from the individual's home to the job requires commuting time of more than two hours a day (not including taking a child to and from a child care facility) or the distance to the job prohibits walking and transportation is not available to take the individual to work.
- The working hours or nature of the employment interferes with the individual's religious beliefs.
- The job is outside the individual's usual line of work. This applies only during the first 30 days after the date of application.

II. PROCEDURES

The worker must determine whether good cause exists within 10 days of determining non-compliance or being notified of non-compliance.

The worker must:

- Contact the client by telephone. If the client cannot be reached by telephone, send a Client Contact Letter ([OFS 18C](#)) in CAFÉ requesting that the client contact the worker regarding the reason for non-compliance allowing the client 10 days to respond. Enter your direct telephone number on the [OFS 18C](#). The DCFS Customer Service Center's contact number 1-888-LAHELPU (1-888-524-3578) should not be listed.
-
- Send an [OFS 18C](#) if the client cannot be reached by telephone to discuss the reason for non-compliance.
 - Check the "To request client to call" box on the [OFS 18C](#) advising the client to call the worker, and
 - Indicate on the [OFS 18C](#) that DCFS is providing the client with an opportunity to explain their reason for non-compliance in order to avoid a potential sanction.

Sample Text for the [OFS 18C](#):

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	B – Eligibility Factors
	Section No./Name	B-1400-FITAP-SNAP-STEP SNAP Work Requirements
	Document No./Name	B-1440-SNAP Determining Good Cause
	Effective Date	February 1, 2021

“I need to discuss the reason Jane Doe did not register for work with LWC by having an active HiRE account at redetermination. I would like to give you an opportunity to provide an explanation why Jane did not register for work so that Jane may not be sanctioned and your household does not lose SNAP benefits.”

- Set a task for 11 days from the date the [OFS 18C](#) was sent to determine if good cause has been established.
 - If the non-compliance was due to not having an active HiRE account and good cause does not exist, check * the Clearance Summary again by completing an on-demand search. The on-demand icon for LWC is located on the right-hand navigation panel throughout the different modules within a case ** ***.
- Take into consideration the facts and circumstances, including the information submitted by the employer *** and by the household member involved.
 - If the client contacts the worker and the client meets an exemption from work registration requirements, the worker must * enter any SNAP work registration-related information about the client's exemption. LITE will automatically update the client's work registration code to the appropriate code when the case is authorized. **
 - ***
 - If the client contacts the worker, does not meet an exemption, and good cause does not exist, the individual must be disqualified by following procedures outlined in [B-1460-SNAP](#).
 - If the client fails to contact the worker by the date listed on the [OFS 18C](#) regarding good cause, the individual must be disqualified by following procedures outlined in [B-1460-SNAP](#).
- Document all activity with a case note.

III. FORMS AND INSTRUCTIONS

[OFS 18C Form](#) / [Instructions](#) Client Contact Letter

IV. REFERENCES

[7CFR 273.7\(i\)](#)

[LAC 67:III Subpart 3, Chapter 19, Subchapter G](#)